

Vijay Shankar Yadav v. District Magistrate And 2 Others

High Court of Judicature at Allahabad · Division Bench · 7 December 2023 · 2023:AHC:232102-DB · WRIT - C No. 39730 of 2023 · **Disposed of; Clause 6.5 application to be decided; coercion stayed**

HEADNOTE

A writ challenging a recovery certificate on the ground that electricity billing was not done properly was disposed of without deciding the bill. The petitioner may apply to the Executive Engineer under Clause 6.5 of the Electricity Supply Code, 2005 within fifteen days; the application is to be considered in accordance with law within three months, and coercive action stays until that decision or for three months, whichever is earlier.

FACTUAL SUMMARY

Vijay Shankar Yadav petitioned the Allahabad High Court against the District Magistrate and two others. He challenged a demand notice and a recovery certificate relating to his electricity connection, stating that billing was not being done properly, though he did not challenge the bill itself. On 28 November 2023 the Court directed the Electricity Department to supply the latest bill and listed the petition afresh for 7 December 2023.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing grievance to Executive Engineer; stay of coercion

HOLDING

If the petitioner files an application under Clause 6.5 of the Electricity Supply Code, 2005 before the concerned Executive Engineer within fifteen days, it shall be considered in accordance with law within three months. For three months or until that application is decided, whichever is earlier, no coercive action shall be taken. The writ petition is disposed of on those terms. ¶ 2-4

PRINCIPLE TAGS

clause-6.5-alternate-remedy-to-writ The writ against the recovery certificate, which raised improper electricity billing, was disposed of by sending the petitioner to Clause 6.5 instead of deciding the bill or the certificate. ¶ 2-4

clause-6.5-representation-executive-engineer Counsel for the Electricity Department identified the concerned Executive Engineer under Clause 6.5, and the Court directed that an application filed within fifteen days be considered in accordance with law within three months. ¶ 2-3

para-6.5-objection-before-coercive-recovery Coercive action was stayed for three months or until the Clause 6.5 application is decided, whichever is earlier. ¶ 3

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER BILLING ON THE CONNECTION WAS IMPROPER AND WHETHER THE RECOVERY CERTIFICATE WAS SUSTAINABLE

Left to the Executive Engineer under Clause 6.5, to be considered in accordance with law. ¶ 1-3